

STATE OF NEW YORK

3949--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. HUNTER -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the Jamesville-DeWitt central school district to discontinue the use of school district-owned parklands and to lease such parklands to the town of Onondaga

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, the Jamesville-DeW-
2 itt central school district, in the county of Onondaga, acting by and
3 through its board of education, and upon such terms and conditions as
4 determined by such board, is hereby authorized to discontinue the use of
5 the school district-owned parkland more particularly described in
6 section three of this act and to lease such parklands at fair market
7 value, for a term not to exceed thirty years, to the town of Onondaga,
8 located in the county of Onondaga, for use by such town for park and/or
9 recreational purposes, provided, however, that such town of Onondaga
10 shall continue to provide access to such parkland and/or recreational
11 facilities to all residents of the Jamesville-DeWitt central school
12 district and the town shall not enact any fees or charges which are
13 higher for residents of the Jamesville-DeWitt central school district
14 who are not town residents.

15 § 2. The authorization contained in section one of this act shall only
16 be effective on the condition that the Jamesville-DeWitt central school
17 district dedicate the proceeds from the lease towards the acquisition of
18 new parklands and/or capital improvements to existing park and recre-
19 ational facilities.

20 § 3. The parklands authorized by section one of this act to be leased
21 from the Jamesville-DeWitt central school district pursuant to section
22 one of this act are described as follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03941-02-5

1 ALL THAT TRACT OR PARCEL OF LAND, situate in the Towns of Onondaga and
2 Dewitt, being part of Farm Lot 149 in the Town of Onondaga and part of
3 Farm Lot 91 in the Town of Dewitt, County of Onondaga and State of New
4 York, and more particularly bounded and described as follows: BEGINNING
5 in the center line of Barker Hill Road at the northeast corner of said
6 Farm Lot 149 in the Town of Onondaga, running thence N 89° 35' 15" W
7 along the north line of said Farm Lot 149 a distance of 965.19 feet to a
8 point; thence due south a distance of 100.0 feet to a point; thence N
9 89° 35' 15" W a distance of 105.63 feet to a point; thence S 0° 40' 35"
10 E a distance of 509.66 feet to a point; thence N 81° 59' 30" E a
11 distance of 342.70 feet to a point; thence S 8° 00' 30" E a distance of
12 150.0 feet more or less to the northerly line of Gallinger Road; thence
13 N 81° 59' 30" E along the northerly line of Gallinger Road a distance of
14 777.5 feet more or less to the center line of Barker Hill Road; thence
15 northerly along the center line of Barker Hill Road a distance of 610.0
16 feet more or less to the place of beginning.
17 Containing 14.85 acres of land more or less excluding the lands within
18 the bounds of Barker Hill Road.

19 § 4. Should the leased lands described in section three of this act
20 cease to be used for the purposes described in section one of this act,
21 the lease shall terminate and those lands shall revert to the James-
22 ville-DeWitt central school district for parks and recreation purposes.

23 § 5. The land to be leased pursuant to this act and all structures and
24 facilities situated on such land shall be maintained and operated for
25 park purposes by the town of Onondaga.

26 § 6. The use of such parklands and facilities to be leased pursuant to
27 this act shall continue to be made available to the general public of
28 the state of New York, including all residents of the town of Onondaga
29 and the Jamesville-DeWitt central school district. Where the availabili-
30 ty of such services is limited, use of such facilities must be deter-
31 mined by an equitable method.

32 § 7. This act shall take effect immediately.